

25TRCV02818 25TRCV02818

County: los-angeles

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Case Number: 25TRCV02818 Hearing Date: June 24, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

SUZANNE

CROSSWHITE,

Plaintiff,

Case No.:

25TRCV02818

vs.

[Tentative]

Granted

CLEAN

BEAUTY CONCEPTS, LLC, a Delaware limited liability company, MAD ENGINE LLC, a California limited liability company, FAIZAN BAKALI, an individual, DANISH GAJIANI, an individual and DOES 1 to 50, inclusive,

Defendant.

Hearing

Date: June
24, 2026

Moving Parties: Plaintiff Suzanne Crosswhite

Responding Party: Defendants Clean Beauty Concepts LLC, Mad Engine LLC, Faizan Bakali, and Danish Gajiani

HEARING: Motion
for Reconsideration

The
Court considered the moving, opposition, and reply papers.

RULING

The Court grants
the Motion for reconsideration and changes its ruling on the statute of
limitations issue regarding the third and fourth causes of action to find that
the Complaint was timely filed. However, as Plaintiff has already filed a new
operative Complaint, the Court grants Plaintiff leave to amend to file a third
amended complaint realleging the third and fourth causes of action.

BACKGROUND

On August
20, 2025, Plaintiff Suzanne Crosswhite filed the Complaint against Defendants
Clean Beauty Concepts LLC, Mad Engine LLC, Faizan Bakali, and Danish Gajiani,
alleging causes of action for intentional interference with contractual
relations, fraudulent concealment, violation of Business and Professions Code
section 17200, interference with prospective economic advantage, and violation
of Business and Professions Code section 17500.

On November 10, 2025,
Plaintiff filed the First Amended Complaint (FAC) against Defendants alleging
causes of action for fraudulent misrepresentation, fraudulent concealment,
intentional interference with contractual relations, intentional interference with
prospective economic advantage, unfair competition, false advertising, and

unjust enrichment and constructive trust.

On March 25, 2026, the Court sustained a demurrer to the FAC. The Demurrer to the first, second, and fifth causes of action was sustained with leave to amend. The Demurrer to the third, fourth, sixth, and seventh causes of action was sustained without leave to amend.

On April 6, 2026, Plaintiff filed the Motion for Reconsideration.

On May 13, 2026, Defendant filed the Opposition.

On June 16, 2026, Plaintiff filed the Reply.

LEGAL STANDARD

Code of Civil Procedure § 1008 provides, in pertinent part:

“(a) When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make an application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.

(b) A party who originally made an application for an order which was refused in whole or in part, or granted conditionally or on terms, may make a subsequent application for the same order upon new or different facts, circumstances, or law, in which case it shall be shown by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts circumstances, or law are claimed to be shown. For a failure to comply with this subdivision, any order

made on a subsequent application may be revoked or set aside on an ex parte motion.

...

(e) This section specifies the court's jurisdiction with regard to applications for reconsideration of its orders and renewals of previous motions, and applies to all applications to reconsider any order of a judge or court, or for the renewal of a previous motion, whether the order deciding the previous matter or motion is interim or final. No application to reconsider any order or for the renewal of a previous motion may be considered by any judge or court unless made according to this section."

(Code Civ. Proc. § 1008 subds. (a), (b), (e).)

DISCUSSION

Plaintiff requests

that the Court reconsider its decision to sustain the Demurrer to the third and fourth causes of action in the FAC without leave to amend.

Plaintiff seeks

reconsideration under Code of Civil Procedure section 1008 of the March 25, 2026, order to the extent it sustained the demurrer to the Third and Fourth Causes of Action on statute-of-limitations grounds, arguing the Court used the wrong filing date in its analysis. Plaintiff clarifies this motion does not challenge the rest of the demurrer ruling or the premise that the complaint alleged discovery on August 16 or 17, 2023, but addresses only the legal effect of the judicially noticed e-filing chronology.

Plaintiff argues

that, under Code of Civil Procedure section 12a, because August 16, 2025, fell on a Saturday and August 17, 2025, fell on a Sunday, either discovery date extended the two-year limitations period to Monday, August 18, 2025.

Plaintiff further

argues that under Code of Civil Procedure section 1010.6, subdivision (e)(4)(E), the statute of limitations is tolled from the date of original receipt through the rejection notice date plus one additional day, where a

complaint is rejected for a technical filing defect and then resubmitted correcting only that defect. Plaintiff contends the record establishes exactly that chronology: the complaint was electronically received on August 18, 2025, at 11:27 p.m., rejected on August 20, 2025, at 3:06 p.m. solely for a technical document-formatting issue, and resubmitted later that same day with no substantive change other than the formatting correction. Plaintiff argues the Court's March 25, 2026, order improperly used August 20, 2025, as the operative filing date despite having judicially noticed this receipt and rejection chronology, and that when section 1010.6 is properly applied together with section 12a, the Third and Fourth Causes of Action were timely filed.

Finally, Plaintiff

argues that the current order has created a present case-management problem, since the action will proceed on the surviving causes of action while the filing-date issue affecting the Third and Fourth Causes of Action remains unresolved, despite all claims arising from overlapping events, witnesses, and documents. Plaintiff contends that correcting the issue now avoids the risk of duplicative proceedings and promotes judicial economy by allowing the case to proceed on a single consistent record.

In opposition, Defendant

argues Plaintiff has identified no new or different facts, circumstances, or law as required under Code of Civil Procedure section 1008(a), since the tolling arguments under sections 12a and 1010.6(e)(4)(E) were already raised in the opposition to the demurrer. Defendant acknowledges Plaintiff's analysis of those two sections appears technically correct, but argues this is ultimately immaterial because Plaintiff's interference claims are time-barred on independent grounds that the Court should adopt instead.

Defendant argues

the statute of limitations actually began running in May 2020, not August 2023, because all elements of an interference claim, including knowledge of the contract and intentional acts designed to disrupt it, were satisfied at that time according to Plaintiff's own factual allegations. Defendant contends the delayed discovery rule does not toll the limitations period until a plaintiff learns every fact supporting her claim, but only until she has reason to suspect wrongdoing. Defendant argues Plaintiff knew by May 2020 that Defendant was refusing to sell at the relevant price ceiling with knowledge of her commission arrangement, which is sufficient to start the limitations clock regardless of when she later learned that Defendant's stated justification for

the refusal was allegedly false, since that justification is not an element of the interference claim.

Defendant further

argues that even if the alleged falsity of that justification were relevant, Plaintiff was required to plead specific facts showing she could not have discovered it earlier despite reasonable diligence, which she has not done. Defendant contends Plaintiff's own sworn declaration in a related prior action establishes that she discovered as early as July 2020 that the defendant company was in fact fulfilling orders for the third party at the relevant price, which Defendant argues was sufficient to place her on inquiry notice that the stated justification was false. Defendant argues that the Court may take judicial notice of this admission in the related action.

Defendant argues

that if the Court reconsiders its prior order, it should not overrule the demurrer but should instead modify its reasoning to sustain the demurrer without leave to amend on these alternative timeliness grounds, with the claim accruing no later than July 2020. In the further alternative, Defendant argues the Court should sustain the demurrer to the third and fourth causes of action on the separate grounds originally argued, namely that the complaint failed to plead facts showing intent to interfere or an actual breach or disruption of the contractual relationship.

"Subdivision (a) permits motions for reconsideration

of an interim ruling by the original moving or opposing party provided that the motion is based upon an alleged different state of facts than the original motion. Subdivision (a) does not require such facts to be new or newly discovered." (Rains v. Superior Court (1984) 150 Cal.App.3d 933, 945.) Here, the Court finds that the facts regarding the filing of the motion present a different timeline than the Court originally considered. Thus, the Court will reconsider its ruling on the Demurrer to the third and fourth causes of action in the FAC.

The Court originally sustained the Demurrer without

leave to amend based on the Complaint being filed on August 20, 2025, more than two years after the alleged discovery of the misrepresentation on August 16 or 17, 2023. However, Plaintiff has now shown that the Complaint was originally filed on August 18, 2025, but the filing was rejected, and Plaintiff then refiled it on August 20, 2025. Thus, the statute of limitations was tolled from

August 17, 2025, to August 18, 2025, under Code of Civil Procedure section 12a, as August 17, 2025, was a Sunday, and then again from August 18, 2025, to August 20, 2025, under Code of Civil Procedure section 1010.6 subdivision (E)(4)(e). Thus, the Court's finding that the third and fourth causes of action were filed after the statute of limitations was incorrect.

Defendant's arguments regarding the merits of the third and fourth causes of action and its new statute-of-limitations theory are not proper to be heard without full briefing in demurrer form. Thus, the Court will not consider them now.

The Court also notes that Plaintiff has already filed a Second Amended Complaint (SAC), superseding the FAC, which does not include the subject causes of action. Defendant has also already filed a Demurrer to the SAC. Given the Court's finding in the instant motion, the Court grants leave to amend to Plaintiff to allow her to file a third amended complaint which includes the third and fourth causes of action for intentional interference with contractual relations and intentional interference with prospective economic advantage. Defendant may then demur to the third amended complaint with the additional grounds raised in its Opposition or any ground raised in the Demurrer to the FAC but not analyzed by the Court.

Therefore, the Court grants the Motion for reconsideration and changes its ruling on the statute of limitations issue regarding the third and fourth causes of action to find that the Complaint was timely filed. However, as Plaintiff has already filed a new operative Complaint, the Court grants Plaintiff leave to amend to file a third amended complaint realleging the third and fourth causes of action.